

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

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DENISE RODRIGUEZ,

Plaintiff

- against -

**THE CITY OF NEW YORK,
POLICE OFFICER JEFFREY GASTON, SHIELD
022200**

Defendants.

Index No.

Purchased 10-12-17

Plaintiff designates Bronx
County as the place of trial

The basis of the venue is
where the tort arose

SUMMONS

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
October 12, 2017


THE LAW OFFICES OF ELLIOT S. KAY
Attorney for Plaintiff
115 East 57th Street, 11th Floor
New York, New York 10022
(212) 939-7251

Defendant's Address:
**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY****DENISE RODRIGUEZ****Plaintiff,****Index No.****Verified Complaint****- against -****THE CITY OF NEW YORK,
POLICE OFFICER JEFFREY GASTON, SHIELD
022200****Defendants.**

Plaintiff DENISE RODRIGUEZ, by her attorneys THE LAW OFFICES OF ELLIOT S. KAY, by ELLIOT S. KAY, principal, complaining of the defendants, respectfully shows to this Court and alleges the following upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff DENISE RODRIGUEZ was a resident of Bronx County, City and State of New York.
2. At all times hereinafter mentioned, defendant THE CITY OF NEW YORK ("CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, THE NEW YORK CITY POLICE DEPARTMENT ("POLICE"), was and is an agency of defendant CITY.
4. At all times hereinafter mentioned, defendant, POLICE OFFICER JEFFREY GASTON, SHIELD # 022200 ("P.O. GASTON") was and is a police officer employed by Defendants.

BACKGROUND

5. On October 14, 2014, at approximately 1:30 p.m., in the vicinity of Fairfax Avenue and Layton Avenue in Bronx County, without just cause or provocation, P.O. GASTON, a police officer with the NEW YORK CITY POLICE DEPARTMENT, handcuffed Plaintiff and intentionally and falsely accused Plaintiff of having committed the crime of Criminal Possession of a Controlled Substance in the Third Degree and related charges.
6. On or about October 15, 2014, a criminal complaint was issued at the directive of Defendants, and a criminal action against Plaintiff was commenced.
7. The criminal matter was terminated in favor of Plaintiff on April 15, 2015.

PROCEDURAL POSTURE

8. On November 2, 2015, Plaintiff served a Notice of Claim in writing sworn to on Plaintiff's behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.
9. More than thirty days have elapsed since service of said notice, and defendant CITY has failed to pay or adjust this claim.
10. Plaintiff has duly complied with all conditions precedent to the commencement of this action.

FIRST CAUSE OF ACTION

11. Paragraphs 1-10 are incorporated by reference as though fully set forth herein.
12. P.O. GASTON was at all times relevant, duly appointed and acting as a police officer with the NEW YORK CITY POLICE DEPARTMENT.

13. At all times mentioned herein, P.O. GASTON was acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.
14. Plaintiff is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.
15. The Defendant CITY OF NEW YORK is a municipality duly incorporated under the laws of the State of New York.
16. On or about October 14, 2014, the Defendants, including P.O. GASTON, while effectuating the seizure of Plaintiff, did search, seize, assault and commit a battery and grab the person of Plaintiff without a court authorized arrest or search warrant. The Defendants, including P.O. GASTON, did physically seize the person of Plaintiff during the arrest process in an unlawful and excessive manner. Plaintiff was falsely arrested. The Defendants did not possess probable cause to arrest Plaintiff.
17. The above action of the Defendants resulted in Plaintiff being deprived of the following rights under the United States Constitution:
- a. Freedom from assault to Plaintiff's person;
 - b. Freedom from battery to Plaintiff's person;
 - c. Freedom from illegal search and seizure;
 - d. Freedom from false arrest;
 - e. Freedom from the use of excessive force during the arrest process.

18. The Defendants subjected Plaintiff to such deprivations, either in a malicious or reckless disregard of Plaintiff's rights or with deliberate indifference to those rights under the fourth and fourteenth amendments of the United States Constitution.

19. The direct and proximate result of the Defendants' acts is that Plaintiff has suffered injuries of a psychological nature. Plaintiff was forced to endure pain, humiliation and suffering, all to Plaintiff's detriment.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated: New York, NY
October 12, 2017

THE LAW OFFICES OF ELLIOT S. KAY



BY: ELLIOT S. KAY, ESQ.

Attorney for Plaintiff
115 East 57th Street, 11th Floor
New York, NY 10022

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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DENISE RODRIGUEZ,

Plaintiff

Index No.

Purchased: _____

-against-

**THE CITY OF NEW YORK,
POLICE OFFICER JEFFREY GASTON, SHIELD
022200**

Defendants

VERIFICATION

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I, **ELLIOT S. KAY**, an attorney admitted to practice in the courts of New York State, state that I am the attorney of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not the Plaintiff is because Plaintiff resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: New York, NY
October 12, 2017



ELLIOT S. KAY